ADVANCE COPY

Jadab Kumar Pal, M.Sc., LL.M. (Medalist), Ph.D. (IIT Kharagpur)
Deputy Chief Executive (Administration) GA
Member, Advisory Board, Dept. of Law, Brainware University, WB
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The 28th November 2022

To
Shri Tanweer Qamar Mohammad
Chief Vigilance Officer & Joint Secretary (Admin)
MoSPI, Room No. 309
3rd Floor, Khurshid Lal Bhawan
Janpath, New Delhi - 110001
Tq.mohammad@gov.in

Through: Chief Executive (A&F) - with a request to forward.

Sub: Request to issue vigilance clearance certificate for applying to IITD.

Sir,

Most respectfully and most humbly I'm to inform you that I sought vigilance clearance certificate on 23.05.2022 through the Chief Executive (A&F) to apply at MNLU for the post of Registrar but the **Vigilance Officer (Part Time)** of the Institute informed that a vigilance case is pending against Jadab Kumar Pal, Deputy Chief Executive (A), Indian Statistical Institute, vide **Annexure-I**. The VO (PT) sought views/comments on false, vexatious and frivolous complaint without routing it through proper channel, vide letter No. NIL, dated 25.11.2020, the complaint was communicated by a cryptic complainant given below, copy enclosed vide **Annexure - II**:

> *"The selection of Jadav Pal to the post of Deputy Chief Executive (A&F) is fake. He has no requisite experience in G.P. 6600 as advertised in the mass media."*

Views/ comments were submitted on 03.12.2020 through proper channel. ***It was specifically mentioned that it is the malicious activity of the frenemy kids in collusion with the ISI Viruses. I worked in GP-6000/- from 03.08.2010 to 07.09.2018, the fact may be verified from the official record of the Institute. And requested to drop this issue due to vague complaint against "Jadav Pal" since "Jadav Pal" and Jadab Kumar Pal is not the same person.*** Copy attached for your ready reference, **Annexure –III**, and the complaint is pending since December 2020.

As per Vigilance Manual the Commission shall not entertain a complaint where allegations are administrative in nature such as relating to transfer, posting promotion, recruitment, suspension etc. and shall be filed (no action taken) or forwarded to the Chief Vigilance Officer (CVO) for necessary action as deemed fit, vide **Annexure-IV**.

I requested the CPIO of the Institute on 06.07.2022 to inform me, inter-alia, the name, address and mobile number of the complainant for vigilance complaint against "Jadav Pal" with 11 points. The CPIO did not provide the information except misleading or false information.

On being appealed, the FAA informed, vide No. CAF/21-A/ 2022-23/ 562, dated 26th September 2022, vide **Annexure – V**, that presently no further information is held with the Office which can be offered on the issues raised. However, information has been sought from the PTVO and Shri T Q Mohammad, CVO & JS (Admin), MoSPI, once it is received it will be intimated to me. Then MoSPI was not in a position to relate the document /complaint on the basis of which PTVO denied the vigilance clearance, vide No. CAF/21-A/22-23/569, dated 30.09.2022, vide **Annexure – VI**, requesting to forward correspondence dated 26.05.2022. The same along with other documents was communicated to the Chief Executive (A&F) Officiating, vide e-mail dated 10.10.2022, **Annexure - VII**. However, till date no information has been given to the appellant. The Central Information Commission also decided, vide File No: CIC/CVCOM/A/2017/ 120855/SD (P Praveen Kumar Vs CPIO, CVC), **Annexure – VIII,** that the appellant cannot be denied the disclosure of file noting(s) pertaining to an investigation against his own self and the contention of the exemption from the disclosure under the grab of Section 8(1) (g) of the RTI Act is not appropriate.

I recently requested to issue vigilance clearance certificate in the prescribed format, vide e-mail dated 27.10.2022, **Annexure – XI,** to apply for the post of Registrar at BIT Mesra, and the VO(PT) advised me to apply through proper channel invoking the CVC guidelines following discussion with the CVO, MoSPI. No vigilance certificate was issued till date, which I required to upload during online application, for which I suffered irreparable economic loss and mental injury.

Few months ago, one of the elected Hon'ble members of the Council and an ethos worker of the Institute threatened me over mobile, which I recorded on 03.02.2022, he threatened with a dire consequence of my employment and vigilance cases inducing me to do an unlawful act which I ought not to do under normal course of my employment for approving / recommending leave of outsourced Disha Cooperative worker in discharge of my official public function. I also requested to initiate disciplinary proceedings or to allow me to lodge FIR before the district administration. And subsequently I sought sanction to prosecute the elected Hon'ble member of the Council and the petition is pending till today.

Moreover, another worker, while I was discharging my function as an Election Officer, threatened me over mobile which I recorded. He also misbehaved in the Office of the Council Section in presence of other workers. However, I did not make any written complaint before the Institute authority. But, these tweedledee and tweedledum belongs to the same group, having nexus with the VO(PT) as he protected the complainant to disclose their names in contravention of the law. The mala-fide intention of the complaints is to preclude me for applying to higher posts.

As per extant guidelines of the CVC, vide No.21-VGC-01, dated 07.01.2021 and its enclosure, vide OM No.104/33/2005-ADV.I, dated 29.10.2007, **(Annexure – X)** para (3) in cases where complaints have been referred to the state and no substantive response has been received from the state within three months from the date on which the reference was made, the cadre controlling authority may provide a copy of the complaint to the officer concerned to seek his comments. If the comments are found to be prima-facie satisfactory by the Competent Authority, vigilance clearance shall be accorded. Moreover, para (5) says that while granting vigilance clearance,

comments of the CVC to be obtained, and if no comments are received within a period of three months, it will be presumed that there is nothing adverse against the officer.

However, the PT (VO) of the Institute did not share the complaint letter with this applicant and no comments was sought from the CVC.

I apprehend that the VO (PT) in connivance with the others concocted this malicious complaint keeping alive the case for about 2 (two) years to harass workers of the Institute maliciously and denying the vigilance clearance certificate intentionally, and motivated by his mala-fide intention. He has also implicated the CVO saying that he has been advised by the CVO not to issue the vigilance clearance certificate to Jadab Kumar Pal as the vigilance complaint is pending with CVC, vide e-mail dated 18th November 2022, **Annexure – XI.**

As per extant guidelines regarding grant of vigilance clearance certificate to the members of the Central Civil Services/ Central Civil Posts, there are few circumstances under which vigilance clearance shall be granted, vide OM No. 11012/11/2007-Estt. (A), dated 14th December 2007:

a) Vigilance clearance shall not be withheld due to the filing of a complaint unless it is established on the basis of at least a preliminary inquiry or on the basis of any information that the concerned department may already have in its possession that there is a prima-facie substance to verifiable allegations regarding (**i) corruption, (ii) possession of assets disproportionate to known source of income, (iii) moral turpitude, or (iv) violation of the Conduct Rules**, and
b) Vigilance clearance shall not be withheld if the preliminary inquiry mentioned above takes more than three months to be completed.
c) Vigilance clearance shall not be withheld unless (i) the officer is under suspension, (ii) a charge sheet is issued against the officer in a disciplinary proceeding and the proceeding is pending, (iii) officer is involved in a trap/ raid case on charges of corruption and investigation is pending.

Para 12 of OM F.No.22034/4/2012-Estt. (D), 02.11.2012, issued by the DoPT says that it may be noted that the vigilance clearance cannot be denied on the ground of pending disciplinary/ criminal/ court case against a Government servant, if the three conditions mentioned in para 2 of the Department's OM dated 14.09.1992 are not satisfied that is **(i) suspension, (ii) issued charge sheet pending DP and (iii) pending criminal charge.** The legally tenable and objective procedure in such cases would be to strengthen the administrative vigilance and to provide for processing the disciplinary cases in a time bound manner.

Timely disposal of complaints is paramount importance. If the complaints are kept pending for long without reaching a logical conclusion the genuine complaint feels frustrated and the institute worker, if guilty, continues to get protection and if the worker is not guilt, he continues to suffer if the complaints are kept pending for long without arriving at a logical conclusion.

Instead of disposing pending complaints in a campaign mode to arrive at logical conclusion by 15th November 2022, the VO(PT) of the Institute is shifting the responsibility to the CVO and he perhaps unware of the following facts:

(i) About the jurisdiction and the extant rules and guidelines
(ii) How to deal with long pending complaints

(iii) CVC's OM regarding disposal of pending cases within 15th November 2022 as a part of AKAM, vide No. 22/VGL/029, dated 25.07.22, issued by CVC.
(iv) Para 4 of OM dated 29.10.2007

Thus, it is evident that the VO(PT) is biased, has flouted and blatantly violated the government rules and orders while dealing with the vigilance cases during the Azadi Ki Amrit Mahatsov. If a case is pending for a long time, an innocuous person suffers great loss.

Therefore, I'm sending this Advance Copy to you and requesting the competent authority of the Institute to forward the hard copy along with the enclosures through the proper channel.

Under the above circumstances, I would sincerely pray before you to kindly issue me vigilance clearance certificate, since the vexatious and frivolous complaint was made falsely in order to malign my reputation. Now, I want to apply outside organizations for higher posts namely in IIT Delhi for the post of Registrar. Copy of the advertisement is attached, **Annexure – XII**, for your kind reference and the last date of online application is 20.12.2022 (5:00 PM). I also request you to kindly inform me the name, address and contact number of the Complainant, since I believe it is not a whistle blower complaint.

I hope your benign and kind intervention would help me to get justice in this issue to douse my mental agony during the period of Azadi Ki Amrit Mahatsov.

Best regards,

Jai Hind,



(Jadab Kumar Pal)
Mobile: 9432489098

Enclosure: As stated.

CC:

1. Director, Indian Statistical Institute, Kolkata - 700108

2. Shri Pabitra Banik, Vigilance Officer (Part-time)
   Agricultural Ecological Research Unit, Biological Science Division
   Indian Statistical Institute, 203 B T Road, Kolkata- 700108

3. In-Charge, Personnel Unit
   Indian Statistical Institute, Kolkata - 700108